A. Complaint email to the seller

DRAFT PREPARED WITH NYAYASETU — NOT SENT, NOT FILED. This is a draft for you to check and edit. It is not a legal notice and not a filed complaint. Verify every fact, complete each [MISSING] and [ADD] field, and remove anything that is not accurate before you use it.

To: WristWorld Retail — [ADD: seller's customer-care email (from the invoice or order page)]
Cc: TrendCart — [ADD: platform customer-care / grievance officer email]
Subject: Complaint regarding Order TC-7781-2026 — Product not as advertised / misleading listing — request for refund

Dear Sir/Madam,

I am writing about my order TC-7781-2026 for smartwatch. The facts are:

1. On 18 October 2026, I placed an order for smartwatch on TrendCart, sold by WristWorld Retail (Order ID: TC-7781-2026) and paid ₹6,999.
2. I bought the product relying on its listing/advertisement. The product supplied does not match what was described. In my words: “I bought a smartwatch for Rs 6,999 on TrendCart because the listing said it was waterproof (5ATM) and had built-in GPS. The watch I received has no GPS and the box says only splash resistant.”
3. I raised the matter with the seller/platform on 24 October 2026 (reference: RR-664120). What I did: “I raised a return request on 24 October 2026 in the app; it was rejected the same day.”
4. The response I received: “The seller refused to accept a return, saying the product is as per description.”
5. As of 7 November 2026, the matter remains unresolved and I have not received the refund of ₹6,999 I asked for.

I would like to draw your attention to the following:

- Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are not of the characteristics or features as advertised or as agreed to. Where the platform itself is the seller, Rule 7(4) imposes the same duty.
- I submit that the listing falsely described the product, which may amount to a misleading advertisement under Section 2(28) and an unfair trade practice under Section 2(47)(i)(a) of the Consumer Protection Act, 2019; sellers must also ensure advertisements are consistent with the actual characteristics of goods (Rule 6(4) of the E-Commerce Rules).

I request you to:

1. Refund the full amount of ₹6,999 paid and take back the product at your own cost.

Please resolve this promptly and confirm in writing, quoting a reference number. If the matter is not resolved, I may pursue the remedies available to me, including the National Consumer Helpline and the Consumer Commission.

Documents I can share on request:

- Annexure A-1: Invoice / bill
- Annexure A-2: Product listing / advertisement screenshot
- Annexure A-3: Photographs of the product / damage
- Annexure A-4: Complaint / ticket reference number

Regards,

Meera Nair
Kochi
[ADD: phone / email]

Generated on 2026-11-08 by NyayaSetu (AI-assisted legal information and document-preparation tool). Highlighted lines contain fields you must complete or check.